



Payroll Solutions

Assigned Client Number: _____

Payroll Client Services Agreement

Client Name Sandoval's TRUCKING

EIN 74-3205452

Initial next to each service as applicable:

Initials

Service

H-S

* **TotalTax Filing** (federal and state forms required)

Nature of services: Payroll Solutions, Inc. agrees that upon acceptance of this agreement, it will (1) collect from Client, hold in its account (the "Tax Account") and deposit with an appropriate authorized depository institution on or before the statutory deadlines, the required Federal, state, and local payroll tax amount; and (2) prepare and file all required Federal, state, and local employment tax forms and reports on or before the statutory deadlines. Payroll Solutions will not accept any responsibility for failure to make deposits or filings if it is not provided with timely or accurate information or insufficient funds. Payroll Solutions will assume interest charges and/or penalties, which are the result of Payroll Solutions negligence only. Terms and conditions continued on below and page 2.

H-S

* **Direct Deposit** (direct deposit forms and EE forms required)

Client authorizes Payroll Solutions, Inc. to create and initiate ACH files to said Banking Institution for the purpose of moving money through the Automated Clearing House (ACH) and providing direct deposit of payroll for Client's employees (Transactee's). Client agrees to indemnify and hold Payroll Solutions, Inc. harmless from any and all claims of any persons whatsoever arising out of Banking Institution's processing activities for Client under the terms of this agreement or otherwise. Such claims may include, but are not limited to, claims for customer's employees or other persons or organizations, including taxing authorities whose credits may have been reversed or banks who may have suffered damage or loss because of insufficient funds of Client. Client understands and agrees that Payroll Solutions, Inc. has no direct financial interest in the debits and credits provided, pursuant to this agreement, and is providing a service to Client for a fee. All risk of loss and liability to any person or organization arising out of the services furnished hereunder shall be that of Client.

_____ **Electronic Paycheck** (order form required)

_____ **Check Signature** (signature form required)

Client authorizes Payroll Solutions, Inc. to scan Client's Authorized Agent's signature and store this information in Payroll Solutions, Inc.'s property. Payroll Solutions, Inc. understands that upon acceptance of this agreement, it will produce said Authorized Agent's signature onto checks and provide signed bank checks for Client's employees for the purpose of payroll, based on the data provided by Client. Client agrees to inform Payroll Solutions, Inc. of change in Client's Authorized Agent at least 5 working days prior to Client's payroll check date. Terms and conditions continued on reverse page under Miscellaneous.

H-S

* **Platinumpay.net** (Client usage)

Nature of services: Payroll Solutions, Inc. agrees that upon acceptance of this agreement it will (1) provide payroll software access via the internet to Client for the sole purpose of payroll data entry; (2) provide software support to Client; (3) process payroll entered by Client; and (4) package and either deliver per Client instruction or hold prepared payroll on premises for Client pick-up. Client understands that the payroll information processed is a result of Client-entered data and therefore Client agrees to indemnify and hold Payroll Solutions, Inc. harmless from any and all payroll errors that arise from Client's data input.

H-S

* **Platinumpay.net** (Client authorizes CPA firm or financial agent access to Client information)

Client authorizes Accounting & Tax Services (CPA firm or financial agent) access to Client's payroll data via MyPayrollWeb.com and understands that this allows full and complete access to Client's payroll information and reports.

_____ **Internet Attendance Services** (Client usage)

Nature of services: Payroll Service agrees that upon acceptance of this agreement it will, through the Attendance on Demand service ("AOD") on the terms set forth on page _____ and incorporated herein; (1) provide time and attendance software access via the internet to Client for the purpose of attendance related data entry and ongoing Client management usage; (2) provide software support to Client through itself or an authorized agent; and (3) process attendance related data entered by Client continuously around the clock. Client understands that the time and attendance information processed is a result of Client entered data and therefore Client agrees to indemnify and hold Payroll Service and Attendance on Demand harmless from any and all attendance related errors that arise from Client's data input and usage.

_____ **Basic Payroll** (opposite of TotalTax Filing)

Payroll Solutions will provide a statement of liability due with each payroll and signature-ready copies of all applicable returns on a quarterly basis. Client assumes complete responsibility of timely paying and filing of all Federal, state, and local employment taxes due. Payroll Solutions will not be held liable for the payment of liability due or filing any returns required.

TotalTax Terms and Conditions:

1. **Client Responsibilities**

Client agrees to provide Payroll Solutions a mutually acceptable data transmission of accurate and complete payroll tax information at least two (2) banking days prior to the check date. Client acknowledges that the Tax Filing Services of Payroll Solutions use information supplied by Client, including payroll data and Federal, state, and local deposit frequencies and identification numbers, and assumes responsibility for the verification and accuracy of this information. Client agrees that

any changes additions or deletions to Client master file information will be made known immediately and in writing to Payroll Solutions. This includes but is not limited to notices or correspondence received from any Federal, state, or local authority with respect to any tax return or deposit made by Payroll Solutions.

2. Demand Deposit Account

Client agrees to authorize the direct debit of a Demand Deposit Account ("DDA") through the ACH established at _____ Bank ("Bank") and maintain sufficient funds in said account to cover all payroll tax deposits current or past due and to collect fees and charges. If Client's federal tax liability exceeds \$100,000.00, which is subject to the Federal \$100,000 One-Day Rule, the Client agrees to fund that liability via wire transfer at the request of Payroll Solutions from the Client's DDA bank account to Payroll Solutions' Tax Account. Client agrees that debits will be made no later than one day prior to the check date. In the event sufficient funds are not available to cover the above listed items, Payroll Solutions will assess a NSF charge and reserve the right to immediately terminate the Agreement without prior written notice. If Payroll Solutions terminates this Agreement, Payroll Solutions shall not be responsible for making any further payroll tax deposits or filings, and shall retain tax deposits to offset any amounts owed from Client.

3. Service Fees

Client agrees to pay Payroll Solutions, Inc. per the agreed upon price schedule attached hereto or to the Service Agreement for the services described above. Client understands that the service fees will be auto debited from Client's bank account, as indicated by Client. As additional consideration, Payroll Solutions may invest funds as Payroll Solutions deems appropriate and that any and all profits, accumulations, and any other form of gain resulting from such investments shall accrue for the benefit of and the sole property of Payroll Solutions. Payroll Solutions agrees to return Client tax refunds in excess of actual tax liabilities and fees upon authorized written request from Client.

4. Term

This Agreement will be in effect from the date of acceptance by Payroll Solutions. Upon termination of service, Client agrees to provide at least thirty (30) days written notice of its intent to terminate the Agreement or failing to do so pay a \$250.00 termination fee. All Clients leaving the Tax Filing Services shall pay a Termination Service Continuance charge of \$150.00 to cover costs of required follow-up after the discontinuance of service. Should Client leave Payroll Solutions Tax Filing Service owing tax balances and/or fees to Payroll Solutions, the officers of said Client agree to be held personally liable for the deficit amount.

5. Authorization to Receive Information

Client hereby instructs all Federal, state, and local tax authorities to deliver tax forms, documents, and other related information to Payroll Solutions. Payroll Solutions is hereby given full authorization to represent and submit records on behalf of Client before Federal, state, or local jurisdiction's tax office with respect to employment taxes. Client hereby authorizes Client's payroll department, including any vendor or computer service, to deliver to Payroll Solutions all necessary documents and payroll information, including payroll tax registers, quarterly reports and summaries.

6. Relationship

This Agreement establishes an independent contractor relationship only, by which Payroll Solutions will perform the tax filing services described herein. It is not intended as, and shall not be construed to establish a partnership, joint venture, agency, or master/servant relationship.

7. General Provisions

Client's failure to comply with all items contained within the Service Agreement terminates this contract and relieves Payroll Solutions of any liability for the proper execution of payroll tax processing as defined in this document. Therefore, Client promises to indemnify and hold Payroll Solutions harmless from any claim against Client and/or Payroll Solutions arising out of the use of information furnished by Client. The total liability of Payroll Solutions is limited to the correction of any error due to the negligence of Payroll Solutions. The Terms and Conditions stated herein between Client and Payroll Solutions supersede any and all prior agreements, warranties, or representations other than those contained within this document, and shall remain in effect until such time as either Client or Payroll Solutions provides thirty (30) days written notification to the other that service is no longer needed or provided. The laws of the State of Texas govern this Agreement. Payroll Solutions will be entitled to immediate recovery of all attorney's fees and expenses that arise from any suit filed in relation to this Agreement.

End Total Tax terms and conditions

Miscellaneous

- 1. New Hire Provision:** Client understands that all states require of all employing entities, the reporting of all new employees hired within 20 days of hire date. Client understands that Payroll Solutions, Inc. will automatically enroll Client in New Hire Service and that Client will not be charged additional amounts for this service.
- 2. ...Continuation of Check Signature Terms:** Client agrees to indemnify and hold Payroll Solutions, Inc. harmless from any and all claims of any persons whatsoever arising out of transportation of said signed checks from Payroll Solutions, Inc.'s premise to Client's requested delivery address and thereafter. Client agrees to indemnify and hold Payroll Solutions, Inc. harmless against any loss, liability or expense arising out of any claim of any person that Payroll Solutions, Inc. is responsible for any act or omission of Client. It is understood that signed checks are negotiable documents and should be reviewed by an authorized representative of the company before distribution.

Payroll Solutions, Inc.

Name of Authorized Agent

Signature of Authorized Agent

Title

Date

Signature

Title

Date